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File No.: EXP202311287

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. on August 20, 2023, filed a complaint, with entry registration number (...), before the Spanish Agency for Data Protection. The reasons supporting the complaint are as follows:

A.A.A. states that someone has created a fake profile on Badoo using her photos obtained from Instagram, including her name, age, and phone number, using an email account with her name and surname (**EMAIL.1).

Along with the complaint, she submits the following documentation:

- Two photographs of the complaint that, according to A.A.A., she filed with the National Police on date **DATE.1 against (...), whom she holds responsible for the described facts.
- A photograph of the fake profile of "(...)" which includes the following message: "(...)".
- A screenshot of the email that, according to A.A.A., she received on date (...) from the address (..)@badoo.com with the subject "(...)". The content is as follows: "(...)".

SECOND: On August 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was accepted for processing.

THIRD: On August 22, 2023, A.A.A. submitted a new document to this Agency, with entry registration number (...), in which she requested to include the company APP BADOO as a party being complained against because "it is where the photos and personal data are being disseminated."

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1) By diligence carried out by this Agency on September 14, 2023, it is noted that as of September 13, 2023, it was not possible to find the profile subject to the complaint, neither (i) through the Google search engine using various search strings on the site badoo.com, nor (ii) by creating a profile on the Badoo social network with residence in **LOCALITY.1 (...) and searching for nearby contacts aged between (...) (the profile subject to the complaint states XX); thus, its existence could not be determined.

2) On October 6, 2023, information was requested from the National Police Station of **LOCALITY.1 regarding whether the authorship of the facts reported in the report XXXX/YY could be determined and, if applicable, to provide this Agency with the identifying data and address of the individual; as well as information on any actions that may have been initiated as a result thereof.

3) On February 5, 2024, due to the lack of response from the National Police Station of **LOCALITY.1, the General Directorate of Police was requested for its collaboration to determine the aspects mentioned above.

On February 27, 2024, and with registration number (...), a letter was received at this Agency sent by the latter informing of the opening of preliminary proceedings XXX/2024 in the Investigating Court (...) of **LOCALITY.1.

4) On April 3 and September 11, 2024, information was requested from the Investigating Court (...) of **LOCALITY.1 regarding the status of the preliminary proceedings XXX/2024 opened in that Court and whether during the course of them the holder of the Badoo social network profile indicated in police report number XXXX/YY had been identified.

On October 9, 2024, and with registration number (...), a communication was received at this Agency from that Court stating that the referenced preliminary proceedings had been archived by resolution of (...) due to the author being unknown.

5) On October 21, 2024, it was verified that the email address used by the person who created the fake profile does not exist.

6) On October 29, 2024, a request was made to the Badoo social network to identify the name of the profile and provide the registration data of this based on the title of the advertisement. No written response has been received from the representatives of the social network.

LEGAL GROUNDS

I

Competence and procedure

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In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided for in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of Processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

III

Conclusion

In order to identify the person or persons responsible for creating a profile in the name of A.A.A. ("...") on the social network Badoo using their personal data (name and surname, among others), preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before the adoption of the decision to initiate proceedings, and once the complaint has been accepted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the decision to accept the complaint or from the date of the decision to initiate it when the Spanish Agency

for Data Protection acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

Once the actions by this Agency were concluded, and as indicated in the "Facts" section of this resolution, the profile subject to the complaint could not be found, nor could the identity of the responsible party or parties be determined.

Therefore, as it was not possible to attribute responsibility for the processing related to the creation of the profile subject to the complaint, without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds; and in accordance with what has been stated, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present actions.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the

Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the date of notification.

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the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to the vacancy of the positions of President and Deputy

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